

10.02.2025

Sanction for Violation of GDPR

The National Authority for the Supervision of Personal Data Processing completed, in January of the current year, an investigation into the operator PPC Energie Muntenia SA and found violations of the provisions of Article 5 paragraph (1) letters a) and b), Article 6, and Article 12 paragraphs (3) and (4) of the General Data Protection Regulation (GDPR), in conjunction with Article 15 of the GDPR. As such, the operator was sanctioned with an administrative fine as follows:

- a fine of 9,950 lei, equivalent to 2,000 EURO for the violation of Article 5 paragraph (1) letters a) and b) and Article 6 of the GDPR;
- a fine of 4,975 lei, equivalent to 1,000 EURO for the violation of Article 12 paragraphs (3) and (4), in conjunction with Article 15 of the GDPR.

The investigation was initiated following a complaint in which the petitioner claimed to have been contacted by phone, for marketing purposes, by a partner of the operator. In this context, the petitioner addressed the operator with a request exercising their rights of access and opposition provided by the GDPR, to which they did not receive a response. Subsequently, the petitioner submitted a new request but was not satisfied with the response received from the operator.

During the course of the investigation, the National Authority for the Supervision of Personal Data Processing found that PPC Energie Muntenia SA had illegally processed the personal data (phone number) of the petitioner by making it available to a partner for marketing and advertising purposes, without a valid legal basis for processing, thus violating the provisions of Article 5 paragraph (1) letters a) and b) and Article 6 of Regulation (EU) 2016/679.

It was also found that the operator did not properly manage the requests through which the petitioner exercised their rights of access and opposition provided by the GDPR, as the response received was not in accordance with the provisions of Article 12 paragraphs (3) and (4) of Regulation (EU) 2016/679, in conjunction with Article 15 of Regulation (EU) 2016/679.

At the same time, based on the provisions of Article 58 paragraph (2) letters c) and d) of Regulation (EU) 2016/679, the following corrective measures were imposed on the operator PPC Energie Muntenia SA:

- to ensure compliance with the GDPR in the operations of personal data processing, so that the data collected for specified, explicit, and legitimate purposes are not processed subsequently in a manner incompatible with those purposes;
- to provide a complete and legally compliant response to the petitioner's requests for exercising their right of access.

Legal and Communication Department
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